

2.	30-2022-01259915 C.S. v. Doe 1, et al.	Before the Court are four (4) Motions for Reconsideration, one in each related case (Nos. 1259915 (ROA 327); 1259771 (ROA 402); 1259908 (ROA 317); and 1259921 (ROA 344)). The Motions seek reconsideration of the Court’s January 29, 2026, Minute Order, which imposed evidentiary sanctions. <i>See</i> Case Nos. 1259915 (ROA 321); 1259771 (ROA 396); 1259908 (ROA 311); and 1259921 (ROA 338)). Plaintiffs C.S. (“C.S.”); S.K. (“S.K.”); Karen Rose (“Rose”); and M.S. (“M.S.”) (collectively “Plaintiffs”) request that the Court grant their Motions for Reconsideration or in the alternative use its inherent authority to amend its ruling. ROAs 327, 351. I. Motion for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a Court’s order “may, within [ten] 10 days after service upon the party of written notice of entry of the order,” move the court to reconsider, modify, or revoke the court’s prior order. Cal. Civ. Proc. Code § 1008(a). The moving party’s application must be accompanied by an affidavit stating “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances or law are claimed to be shown.” Cal. Civ. Proc. Code § 1008(a). Importantly, applicants for reconsideration are subject to a strict standard of diligence in ensuring the new or different facts, circumstances, or law were <i>not known or available</i> at the time of the original application. <i>See Garcia v. Hejmadi</i> 58 Cal. App. 4th 674, 690(1997). Courts will <i>not</i> consider new or different facts, circumstances, or law presented at application for reconsideration that courts find were available to the applicant at the time of the <i>original application</i> in controversy. <i>See id.</i> (finding that the applicant failed to meet the requirements of Section 1008 by presenting facts on reconsideration that were available at the time of the original application, without offering any justification for its failure to present them earlier). Plaintiffs argue reconsideration is warranted because they
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	have now submitted supplemental declarations that cure the deficiencies identified by the Court in its prior order. ROAs 327, 351. Plaintiffs contend these revised declarations constitute a new or different circumstance under California Code of Civil Procedure Section 1008 because the declarations provide the detailed information the Court found lacking and bear directly on the basis for the Court's imposition of evidentiary sanctions. <i>Id.</i> The Court is not persuaded by Plaintiffs' arguments. Plaintiffs identify no genuinely new or different facts, circumstances, or law that could not, through the exercise of reasonable diligence, have been presented at the time of the original motion. Rather, Plaintiffs' motion presents a renewed argument based on facts and circumstances that were previously available yet withheld. Plaintiffs cannot satisfy the requirements of Code of Civil Procedure section 1008 by simply curing deficiencies in their prior submissions and presenting the corrected information as new facts or circumstances warranting reconsideration. The remainder of Plaintiffs' arguments do not identify any new or different facts, circumstances, or law. Instead, Plaintiffs' arguments challenge the merits of the Court's prior ruling and seek to relitigate issues that were previously considered. Such arguments do not provide a proper basis for reconsideration under section 1008. Accordingly, Plaintiffs' Motions for Reconsideration pursuant to California Code of Civil Procedure Section 1008 are DENIED. II. Court's Inherent Authority The Court retains the inherent authority to change its decision at any time prior to the entry of judgment. <i>Darling, Hall & Rae v. Kritt</i>, 75 Cal. App. 4th 1148, 1157 (1999), as modified on denial of reh'g (Oct. 26, 1999). The only requirement of the court is that it exercise "due consideration" before modifying, amending, or revoking its prior orders. <i>Kritt, supra</i>, 75 Cal. App. 4th at 1157. Upon further due consideration of the scope of the
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		evidentiary sanctions previously imposed, the Court finds that Sanction No. 2, which provided that “Plaintiffs are precluded from asserting that they reported Sellars’ alleged sexual misconduct to others, including Terri Sellars,” was broader than necessary to remedy the discovery violation at issue. Accordingly, the Court exercises its inherent authority to modify Sanction No. 2 as follows: “Plaintiffs are precluded from introducing <i>documents</i> concerning reports of Sellars’ alleged sexual misconduct to others, including Terri Sellars, that were not produced in discovery.” The remainder of the sanctions order remains unchanged. Clerk to give notice.
5.	30-2023-01366408 Wooden vs. National Community Renaissance; A California Nonprofit Housing Corporation	Before the Court are the following three (3) motions brought by Defendants National Community Renaissance; Arbor Villas Apartments, LLC; and Elizabeth Becerril (collectively, “Defendants”) against Plaintiff Linda Wooden (“Plaintiff”): a Motion to Compel Further Responses to Special Interrogatories (“MF-SROG”), Set One; a Motion to Compel Further Responses to Form Interrogatories (“MF-FROG”), Set One; and a Motion to Compel Further Responses to Requests for Production (“MF-RFP”), Set One. ROAs 133, 139, 145. In the underlying controversy, Plaintiff alleges Defendants breached the parties’ lease agreement. ROA 122, ¶ 4. Plaintiff also brings causes of action against Defendants for breach of quiet enjoyment, personal injuries to a non-party, negligence, defamation, and discrimination. <i>Id.</i> Defendants seek an order, pursuant to California Code of Civil Procedure Sections 2030.010 and 2030.290, compelling Plaintiff to serve further, verified, code compliant responses to Defendant’s Special Interrogatories (“SROG”), Set One, and Form Interrogatories (“FROG”), Set One. ROA 133, p.2; ROA 139, p.2. Defendants also seek an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Plaintiff to serve further, verified, code compliant responses to Defendants’ Request for Production (“RFP”), Set One,